

CONSENT WAS NEVER THE POINT

A Plain Language Guide

What Alberta Did, What Is Happening Now, and Why It Matters



This guide is for everyone.

If you have a disability, this explains what is happening, and what has happened before, in simple words.

If you support someone with a disability, this gives you the bigger picture.

If you have read the long version, this is the same story in plain words.

■ EVERY SECTION ENDS WITH A GREEN BOX

Each section ends with a green box that gives you exact words to use — when you talk to family, an MLA, a worker, or a neighbour.

The Alberta Disability System Breakdown — June 2026

albertadisabilitysystembreakdown.netlify.app

SECTION 1

WHAT THIS GUIDE IS ABOUT



The long version of this piece is 97 pages. It has footnotes, court cases, and government documents.

This is the plain language version. It covers the same ground, in simpler words.

The long piece asks one question: did Alberta ever ask the people the system was built around — and is it asking them now?

The answer is no. Alberta has not asked them in the same way for almost one hundred years.

The story is heavy. It is also true. And the people it is about deserve to be able to read it.

Why is it called “Consent Was Never the Point”?

Consent means asking someone before doing something to them, and listening to the answer. The piece is called this because the documented record shows that for almost a century, Alberta has made decisions about disabled people's lives without asking them first, or while pretending to ask, or while ignoring the answer.

THE SHORT VERSION

- There is a long, 97-page piece on how Alberta has treated disabled people from 1928 to today.
- This is the plain language version. It is free, and it can be read aloud.
- The story is heavy, but it is true.

■ SAY IT LIKE THIS

There is a long piece on how Alberta has treated disabled people from 1928 to today. This is the plain language version. It is free. It can be read aloud. The story is heavy but it is true.

SECTION 2

1928 TO 1972: WHAT HAPPENED



In 1928, Alberta passed a law called the Sexual Sterilization Act.

The law let a small group of doctors and officials — called the Eugenics Board — decide which Albertans could not have children. The decision was based on whether the person was thought to be “mentally defective” or “psychotic.” The people the Board decided about were already living in provincial institutions.

Over 43 years, the Eugenics Board considered 4,785 cases and approved about 99 percent of them. About 2,832 of those sterilizations were actually carried out.

Many were done without the person’s consent. And after the law was amended in 1937, no consent was required at all for anyone the Board labelled “mentally defective.”

The Act was finally repealed — taken off the books — in 1972, and the Eugenics Board was disbanded. But the people who were sterilized still live with what was done to them. Some are alive today.

What does “sterilized” mean here?

A surgery that permanently stops a person from having children. The person could not change their mind later. For the Albertans this happened to, it was something done to them — not something they chose.

THE SHORT VERSION

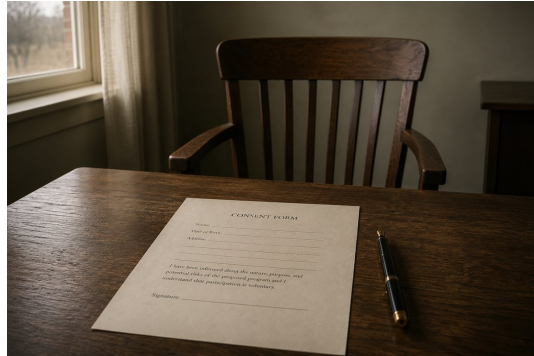
- From 1928 to 1972, Alberta sterilized about 2,832 people on the basis of disability.
- Most did not consent. After the law changed in 1937, no consent was required at all.
- It is not ancient history — some survivors are still alive.

■ SAY IT LIKE THIS

From 1928 to 1972, Alberta sterilized about 2,832 people based on disability. Most did not consent. It is not ancient history — some survivors are still alive. The law was finally repealed in 1972.

SECTION 3

WHAT “CONSENT” ACTUALLY MEANS



Consent is a serious word. It does not just mean “they said yes.” Consent means four things at once:

1. The person was told the whole truth about what would happen.
2. They could understand what they were told.
3. They could say no, without being punished for saying no.
4. Saying yes had to be a real choice — not the only option they were given.

If any one of those things is missing, it is not real consent. It might look like consent on paper. But it is not.

This matters because Alberta’s record — both old and new — is full of moments where consent was written on the paper, but the person was not actually being asked. The United Nations Convention on the Rights of Persons with Disabilities, which Canada signed in 2007 and made law in 2010, says disabled people have the right to make their own decisions, with support if they want it.

SECTION 3 — WHAT “CONSENT” ACTUALLY MEANS

What is “substituted decision-making”?

When someone else makes the decision for the disabled person, instead of with them. The UN treaty says this is not allowed. Alberta still does it in many parts of the disability system.

THE SHORT VERSION

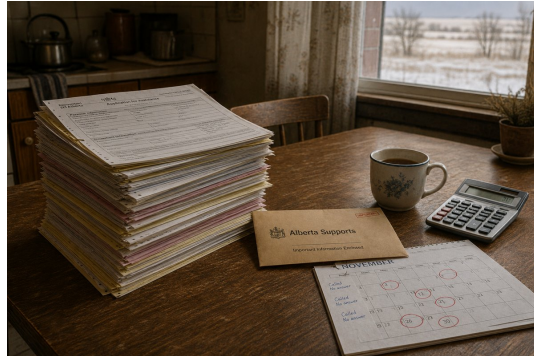
- Consent means four things: you were told the truth, you could understand it, you could say no safely, and yes was a real choice.
- If any one is missing, it is not real consent.
- Alberta’s record is full of moments where it was missing.

■ SAY IT LIKE THIS

Consent means you were told the truth, you could understand it, and you could say no without being punished. If any one of those is missing, it is not real consent. Alberta’s record is full of moments where it was missing.

SECTION 4

DISABILITY POLICY IN ALBERTA TODAY



Most of Alberta's disability supports are built for two ends of the spectrum.

One end: the most severely disabled people. They get group homes, day programs, AISH, and intensive supports. These are not perfect, but they exist.

The other end: people with mild disabilities who can mostly work in regular jobs. They get accommodations — extra exam time, a quieter office, a ramp.

In the middle: everyone else. People with moderate intellectual disability. People whose mental illness changes from month to month. People with learning disabilities or brain injuries that do not need full-time care but do need someone to know their situation.

The middle is the biggest group — according to Statistics Canada, almost six out of every ten disabled Canadians. It is also the group Alberta serves the worst, because the middle needs case-by-case help. Alberta has been quietly cutting that help back. FSCD families now wait an average of three years for an individual caseworker, and AISH appeals were eliminated by Bill 12 in December 2025.

What is FSCD?

Family Support for Children with Disabilities — the Alberta program that helps families raising a disabled child. The program used to give families an individual caseworker. Many families now go through an online intake and never get one.

THE SHORT VERSION

- Most supports are built for the most severely disabled or the most able-bodied.
- The big group in the middle — about 60 percent of disabled people — gets the worst support.
- Alberta is cutting back the case-by-case help that group needs.

■ SAY IT LIKE THIS

Most disability supports are built for the most severely disabled or the most able-bodied. The big group in the middle — about 60% of disabled people — gets the worst support. Alberta is cutting back on the kind of help that group actually needs.

SECTION 5

THE AISH-TO-ADAP CHANGE RIGHT NOW



In July 2026, Alberta is changing how disability income works.

Right now, about 80,000 Albertans receive AISH — Assured Income for the Severely Handicapped — at \$1,940 a month.

That group is being split. About 30,000 people will stay on AISH. About 50,000 will be moved to a new program called ADAP, which pays \$1,740 a month. That is \$200 less than AISH.

Every AISH recipient is getting a letter telling them which program they will be on.

Here is the problem: the rules that decide which program a person ends up on have not been fully published. The government filed new regulations on May 12. They set the dollar amounts. They set how much you lose if you live with another disability-income recipient — each of you drops to 88 percent of the maximum, so you lose 12 percent. But the regulations do not spell out what makes someone an AISH person or an ADAP person.

The letters are going out. The criteria are not. And Bill 12 (December 2025) removed the right to appeal the move itself.

What is ADAP?

The Alberta Disability Assistance Program — the new program launching in July 2026. It pays \$200 less per month than AISH and asks recipients to engage with employment supports.

THE SHORT VERSION

- Alberta is moving most AISH recipients to a new program, ADAP, in July 2026.
- ADAP pays \$200 less per month.
- The letters are going out, the full criteria are not published, and the move cannot be appealed.

■ SAY IT LIKE THIS

Alberta is moving most AISH recipients to a new program called ADAP in July 2026. ADAP pays \$200 less per month. The letters are going out now. The full criteria are not published. The right to appeal the move is gone.

SECTION 6

WHAT YOU ARE NOT BEING TOLD



Most of the important documents about the AISH-to-ADAP change are written above a Grade 13 reading level. That is higher than the reading level of about half of all adult Albertans, according to Statistics Canada's 2024 literacy data.

A program for people with cognitive, mental, and combined conditions is being explained in language most of its recipients cannot read.

This is not an accident. The phrase for what is happening is information asymmetry — when one side of a conversation has all the information, and the other side does not.

The Province holds the criteria that decide who gets AISH and who gets ADAP, the decision letters, and the public engagement webpage, which the government blocked from being saved to the Internet Archive in April 2026.

The 80,000 recipients hold the letter they just got in the mail. No way to read the criteria that produced it. No right of appeal.

What does “information asymmetry” mean?

“Asymmetry” means uneven. Information asymmetry means one side has more information than the other, and that gap gives them control. It is a documented condition. It can be measured. And it has been documented in this case.

THE SHORT VERSION

- The forms are written above a Grade 13 reading level.
- About half of adult Albertans cannot read at that level.
- The criteria are hidden, the appeal is gone, and the Province holds the information disabled people need.

■ SAY IT LIKE THIS

The forms are written above Grade 13. Half of adult Albertans cannot read at that level. The criteria are not published. The appeal is gone. The Province is holding the information disabled people need to use.

SECTION 7

THE NEW BUILDINGS



In May 2025, Alberta passed the Compassionate Intervention Act. The law lets the government order people into treatment for addiction without their consent — up to three months in a facility, then up to six months in the community.

In Budget 2026, the government committed \$318.6 million over three years in capital funding for involuntary treatment facilities. Of that, \$291 million is for two new 150-bed centres in Edmonton and Calgary, set to open in 2030. Another \$7.5 million will convert about 100 secure beds in five existing hospitals to run the framework in the meantime, and \$20.2 million is for the Northern Alberta Youth Recovery Centre.

The five hospitals where those 100 secure beds will go are Alberta Hospital Edmonton, the Centennial Centre in Ponoka, the Claresholm Mental Health Centre, the Peter Lougheed Centre in Calgary, and the Grande Prairie Regional Hospital.

Those are the building costs. There is operating money on top: Budget 2026 adds about \$33 million for compassionate intervention through Recovery Alberta, and a \$59 million increase for hospital and continuing care services to support the rollout.

Hold those numbers next to the other change happening at the same time. Through the AISH-to-ADAP move, the Province is taking \$200 a month away from about 50,000 disabled Albertans. Whatever the reason, the effect is the same: money is moving away from supporting disabled people in the community, and toward holding them in institutions.

This is the part that matters. The Centennial Centre in Ponoka is the building that used to be Alberta Hospital Ponoka. From 1929 to 1972, Alberta Hospital Ponoka was one of the four “feeder hospitals” of the Eugenics Board — the places the Board drew its sterilization caseload from.

Same building. New program. Different vocabulary. The mechanism has changed. The architecture has not.

What does “involuntary treatment” mean?

You are held in a facility and given treatment even if you say no. The Compassionate Intervention Act calls it “compassionate intervention.” Other places call it what it has always been — forced treatment.

THE SHORT VERSION

- Alberta is spending \$318.6 million to build involuntary treatment, plus operating money to run it — while cutting \$200 a month from about 50,000 disabled people.
- The framework will run out of five existing Alberta hospitals.
- One of them, the Centennial Centre in Ponoka, is the same building the Eugenics Board used from 1929 to 1972. Same building, different program, same architecture.

■ SAY IT LIKE THIS

The Compassionate Intervention Act will be operated out of five existing Alberta hospitals. One of them — the Centennial Centre in Ponoka — is the same building the Eugenics Board used between 1929 and 1972. Same building. Different program. Same architecture.

SECTION 8

“PERSON-CENTERED”: WORDS USED TO COVER CUTS



This has happened before.

Between 1993 and 2013 — across the Klein and Redford governments — Alberta adopted the language of “person-centered care,” “community-based supports,” and “individualized funding.” These are the words disability-rights advocates use to describe what good supports look like.

The same governments cut social services funding by 21 percent in 1994. Welfare rolls were cut in half. Homelessness rose 740 percent across the Klein years. The community-based supports the language promised were never funded at the level the rhetoric required.

In 2013, Premier Redford announced that the Michener Centre in Red Deer — the former Provincial Training School, where Leilani Muir was sterilized in 1959 — would close, moving 125 residents to “community living” and cutting 400 caregiver jobs. The closure was framed as “person-centered care.” Critics pointed out that no new community housing was being built to receive the residents.

The pattern is documented: the reform language is adopted, the reform substance is not funded, and the disabled population the language names ends up less served than before. Today the same pattern is visible in the language around ADAP (“modernization”), the Compassionate Intervention Act (“compassion”), and BC’s involuntary care (“supportive housing”). The words sound like advocacy. The mechanisms do not follow the words.

Who was Leilani Muir?

Leilani Muir was sterilized at the Provincial Training School in Red Deer in 1959, when she was a child. In 1996 she won a court case against the Alberta government for what was done to her. Her case opened the door for hundreds more sterilization survivors to sue.

THE SHORT VERSION

- Alberta has used words like “person-centered” and “modernization” before — while cutting services.
- When a government uses caring words about disability programs, look at what it is actually funding.
- The words sound like help. The mechanisms often do not follow.

■ SAY IT LIKE THIS

When governments use words like “person-centered,” “modernization,” or “compassion” about disability programs — look at what they are actually funding. Alberta has used these words before to cut services. The words sound like help. The mechanisms often don’t follow.

SECTION 9

FIVE TIMES THIS HAS HAPPENED



The long version traces five separate moments in Alberta's documented record. Each is a moment when a decision was made about disabled Albertans' lives — and consent was either missing, removed, or worked around.

1928 — The Sexual Sterilization Act was passed and the Eugenics Board was created. Consent was required, in theory.

1937 — The Act was amended. Consent was removed entirely for anyone the Board classified as “mentally defective.”

1972 — The Act was repealed under the Lougheed government and the Board was disbanded. But the institutional buildings stayed.

1998 — The Klein government introduced Bill 26, which would have capped sterilization-survivor compensation at \$150,000 and invoked the notwithstanding clause to override Charter challenges. It was withdrawn within 24 hours after public outcry. But it was tried.

2025–2026 — Bill 12 (December 2025) removes appeal rights from AISH. Bill 53 (May 2025) creates the Compassionate Intervention Act. The May 12, 2026 regulations leave the AISH-versus-ADAP criteria undefined while 80,000 letters land.

These are not five unrelated decisions. They are five expressions of the same premise — that disabled existence creates a lesser claim to consultation, to consent, to the protections the Province extends to others.

SECTION 9 — FIVE TIMES THIS HAS HAPPENED

What is the “notwithstanding clause”?

Section 33 of the Canadian Charter of Rights and Freedoms. It lets a government override certain Charter rights for five years at a time. Alberta tried to use it in 1998 to limit sterilization compensation.

THE SHORT VERSION

- Five times — 1928, 1937, 1972, 1998, and 2025–2026 — Alberta made the same kind of decision about disabled people without real consent.
- It is not one bad law.
- It is a pattern.

■ SAY IT LIKE THIS

Five times in Alberta’s record — 1928, 1937, 1972, 1998, and 2025-2026 — the same kind of decision was made about disabled people without real consent. It is not one bad law. It is a pattern.

SECTION 10

IT'S NOT JUST ALBERTA



The pattern is not Alberta-only. Same kind of framework, different provinces.

Saskatchewan passed its own Compassionate Intervention Act in May 2026. Treatment will happen at Saskatchewan Hospital North Battleford, a psychiatric facility operating since 1914. The provincial medical association and the College of Physicians and Surgeons both said publicly: do not operate this Act without safeguards. The government did anyway.

British Columbia expanded involuntary care in 2024. The first facility opened inside the Surrey Pretrial Services Centre — a prison. The second opened on the grounds of a women's correctional centre. The BC Health Minister confirmed to CBC that patients do not get a choice in their treatment.

Manitoba opened a 72-hour involuntary detention facility in Winnipeg in 2025. In March 2026 it began accepting people impaired by methamphetamine and other drugs, not just alcohol.

Ontario: in November 2024, twelve mayors asked Premier Ford to use the notwithstanding clause to enable mandatory treatment. New Brunswick is planning its own legislation.

Four provinces operational, two more planning or pressuring, and several different parties in government. The pattern crosses political lines. It is institutional, not partisan.

Why is it spreading across parties?

Because the pattern is older than any one political party. It is about the architecture — the assumption that government can decide what kind of life is sufficient for a disabled person — and that assumption is older than the current governments. Different parties are picking up the same architecture.

THE SHORT VERSION

- This is happening in six provinces: Alberta, Saskatchewan, BC, Manitoba, Ontario, and New Brunswick.
- Several different parties are doing it.
- It is not a one-party problem. It is a national one.

■ SAY IT LIKE THIS

This is happening in six provinces: Alberta, Saskatchewan, BC, Manitoba, Ontario, and New Brunswick. Different parties are all doing it. This is not a one-party problem. It is a national one.

SECTION 11

DISABILITY IS NOT CONSENT TO PENALTY



This is the moral logic that holds the whole piece together. It is worth saying plainly. No person consents to the body or mind they are born with. No child agrees to a genetic difference, a developmental disability, a chronic condition, or a body that will fail. Most disabilities cannot be detected before birth. Many appear only later — through injury, illness, aging, or things no person chose.

Disability is not misconduct. It is not a character flaw. It is not a failure of effort, planning, morality, or will.

But disability policy keeps treating disabled existence as if it creates a smaller claim to housing, income, family life, and basic participation. The person living inside the body pays the cost of conditions they did not choose. The Province then adds a second cost: less income, restrictions on partnership, delayed support, decisions made for them, and policy changes made without asking them.

That is the continuity this piece names. Disabled people are still being treated as if their unchosen bodies and minds give the Province permission to decide what kind of life is enough for them.

The correction is simple to say. Disability is not consent to penalty. It does not create a smaller right to income, housing, partnership, family life, or being heard. A framework consistent with that standard has not been built in Alberta across the period this piece documents. It can be built next.

Why does this matter for the AISH-to-ADAP change?

Because the change treats disability as if it were a kind of misconduct that justifies reduced support, conditional benefits, and removed appeal rights. The disabled person did not choose the condition. The Province is treating the condition as a reason to reduce what the person receives.

THE SHORT VERSION

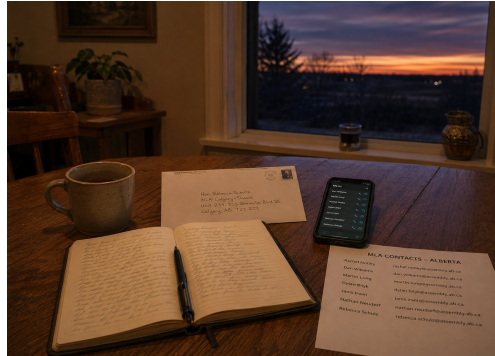
- No one chose their body or mind.
- Disability is not misconduct, and it is not consent to penalty.
- It does not create a smaller right to income, housing, family life, or being heard.

■ SAY IT LIKE THIS

Disability is not consent to penalty. No one chose their body. The government is still treating disability as if it creates a smaller claim to support, autonomy, and being asked. That is wrong, and the record proves it has been wrong for a long time.

SECTION 12

WHAT YOU CAN DO



You do not have to read the long version to act on what is in it.

1. Read your letter. If you are on AISH, you should be receiving an eligibility-determination letter. Read it, save it, make a copy, and note the date.
2. Write to your MLA. Tell them what the letter says. Ask what the criteria are and why they were not published before the letters went out. The campaign has a fillable MLA/MP contact letter at the website.
3. Contact the Ombudsman. If your letter contains a decision you cannot understand or cannot appeal, the Alberta Ombudsman accepts complaints about administrative process. Email: info@ombudsman.ab.ca.
4. Document what you are seeing. If you are a family member, support worker, or caregiver, write down dates, names, and what happened. The record matters.
5. Share this guide. Free to share, free to print, free to post. The point is that the people affected can read what is happening.
6. Find others. The Facebook group "The Alberta Disability System Breakdown" has grown past 1,800 members. You are not alone. The architecture is provincial. The response is collective.

Who else is doing this work?

Inclusion Alberta. The People's Alliance for Disabled Albertans. Public Interest Alberta. Disability Action Hall. The Can Man Dan Foundation. A municipal coalition of ten communities — Calgary, Edmonton, Lethbridge, Camrose, Red Deer, Medicine Hat, St. Albert, Cold Lake, Grande Prairie, and Rocky Mountain House. Many MLAs, including Marie Renaud, are on the public record. You are joining a coalition.

THE SHORT VERSION

- Read your letter, save it, and note the date.
- Write to your MLA. Document what you see. Share this guide.
- Find others — the group has grown past 1,800 members. You are not alone.

■ SAY IT LIKE THIS

I am asking for the AISH and ADAP eligibility criteria to be published in plain language, the right of appeal restored, a pause until both are in place, and the Canada Disability Benefit clawback to end.

SECTION 13

WHERE TO FIND MORE



This guide is the short version of a 97-page piece called Consent Was Never the Point: Alberta's Eugenic Inheritance and Canada's Institutional Rebuild, 1928 — Present.

The long version has footnotes citing every source, the court cases, statutes, and treaty documents, the full historical record from 1928 forward, and the Cross-Canada Record with the per-jurisdiction operational record for six provinces.

It is available free at: albertadisabilitysystembreakdown.netlify.app

The campaign's other plain language guides cover related ground: What Is Happening to Your Benefits (AISH/ADAP); Compound Failure (three systems breaking at once); Indigenous Disability in Alberta; What Disability Actually Means; and the Charter of Rights Plain Language Guide.

All of them are free to share, free to print, free to post.

If you have read this guide and want to do something, see the "What You Can Do" section. If you have a story to share with the campaign, write to: albertadisabilitybreakdown@outlook.com

Is this really free?

Yes. Every guide the campaign makes is free to share, free to print, and free to post. No cost, no catch. The whole point is that the people this is about can read it.

THE SHORT VERSION

- The long version is 97 pages, fully sourced, and free online.
- There are other free plain language guides too.
- Free to share. Free to print. Free to post.

■ SAY IT LIKE THIS

There is a free 97-page version with every source cited, and a set of free plain language guides. All of it is free to share, print, and post. Find it at albertadisabilitysystembreakdown.netlify.app.